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# *AGREEMENT*

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**BETWEEN THE**

**Southeastern Community Unit School  
District Number 337  
Board of Education**

**AND THE**

**Southeastern Education Association**

**FROM**

**August 1, 2024**

**THROUGH**

**June 30, 2026**

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## **ARTICLE I**

### **RECOGNITION**

- 1.1 The Board of Education of Southeastern School District No. 337, Augusta, and Bowen, Illinois, recognizes the Southeastern Education Association which is affiliated with the Illinois Education Association and the National Educational Association as the exclusive bargaining agent for the certified full and part time regularly scheduled classroom teachers including media specialist and counselors except temporary and substitute teachers, principals, superintendent, and assistant superintendents.
- 1.2 The Board agrees not to negotiate with any other employee's representative organization during the term of this Agreement.

## **ARTICLE II**

### **NEGOTIATIONS PROCEDURE**

- 2.1 Both parties agree to negotiate in good faith. “Good faith” shall mean that the parties shall confer at reasonable times and at reasonable places with the purpose of making proposals and counter proposals to reach a collectively bargained agreement.
- 2.2 The parties shall commence bargaining for a successor Agreement on or before April 1 of the year the Agreement is set to expire.
- 2.3 The Board will provide an electronic copy of this Agreement for each member of the unit.
- 2.4 In the event that both parties mutually agree that an impasse exists, the parties shall jointly request that the Federal Mediation and Conciliation Service shall provide a mediator.

## **ARTICLE III**

### **GRIEVANCE PROCEDURE**

#### 3.1 **SCOPE**

A grievance shall be defined as a claim by the Association, by a member or group of members of the bargaining unit of violation of any provision of this Agreement.

#### 3.2 **PROCEDURES**

##### **A. Stage One**

The grievant shall attempt to resolve any potential grievance in an informal discussion with his or her attendance center principal within fifteen (15) days from the time the employee became aware of the occurrence of the first event giving rise to the alleged violation of this Agreement. The attendance center principal shall respond orally within fifteen (15) days of the informal discussion.

##### **B. Stage Two**

If the grievance cannot be resolved at Stage One, the grievant or Association shall file a written statement of the grievance with his/her attendance center principal. Such a written statement of a grievance shall be filed within ten (10) days from the receipt of the oral response of the attendance center principal and contain a statement of the factual basis of the grievance and the section or sections of the Agreement which are alleged to have been violated. The attendance center principal shall respond in writing within ten (10) days of receipt of the written grievance giving his response and the reasons on which it was based.

##### **C. Stage Three**

If the grievance cannot be resolved at Stage Two, the Association may appeal the decision of the attendance center principal in writing to the District Superintendent within ten (10) days of the receipt of the written decision of the attendance center principal. The District Superintendent within ten (10) days shall convene a meeting with the grievant and Association representative to discuss the grievance and shall respond in writing within ten (10) days of such meeting giving his response and the reasons on which it is based.

##### **D. Stage Four**

If the grievance is not resolved at Stage Three, the Association may appeal the decision of the District Superintendent in writing to the Board of Education within ten (10) days of the receipt of the written decision of the

Superintendent. The Board of Education or a committee designated by the Board of Education within twenty (20) days shall convene a meeting with the grievant and Association representative to discuss the grievance and shall respond in writing within ten (10) days of such meeting giving the response and the reasons on which it is based.

E. **Stage Five**

If the grievance is not satisfactorily resolved at Stage Four, the Association may submit to the Superintendent within twenty (20) days of the receipt of the answer in Step Four a written request on behalf of the grievant to enter into binding arbitration.

Arbitration proceedings shall be conducted by an arbitrator to be selected from a roster of arbitrators provided by the American Arbitration Association. Expenses for the arbitrator's services will be borne equally by the District and Association.

The arbitrator's decision shall be binding on all parties. The arbitrator shall not amend or modify any of the provisions of this Agreement, the arbitrator's authority shall be strictly limited to deciding only the issue or issues presented to him in writing by the School District and Association and shall be based solely on the wording of this Agreement. The arbitrator shall be limited to directing the parties to comply with the terms of this Agreement.

The Board acknowledges the right of the teacher to request the Association's grievance representative to be present at any level of the grievance.

3.3 **WITHDRAWAL**

A grievance may be withdrawn at Stage One or Stage Two without establishing a precedent.

3.4 **BYPASS**

By mutual written agreement of the District and the Association, any step of this procedure may be bypassed.

3.5 **NO REPRISALS**

No employee shall be subject to dismissal as a result of the employee's filing of a grievance.

## **ARTICLE IV**

### **EMPLOYEE AND ASSOCIATION RIGHTS**

#### **4.1 RIGHT TO ORGANIZE**

The Board acknowledges that the teachers have a right to join the Association and that the Association has the right to conduct collective negotiations with the Board.

#### **4.2 NOTICE OF BOARD MEETINGS**

The President of the Association shall be given notice of all open scheduled regular meetings and non-emergency special meetings of the Board, together with an agenda for such regular meetings at least twenty-four (24) hours prior to the meeting.

#### **4.3 FACILITIES USE**

The Association shall be granted from time to time reasonable use of a room in a school district building for the purpose of conducting meetings of members of the bargaining unit when such use does not, in the judgment of the district, conflict with the use of the building by other groups or with the needs of the district. Such use shall be granted after school hours on school days. The district shall have the right to require the Association to pay for the actual costs of the use.

The Association shall be granted reasonable use of a photocopy machine of the district for the purpose of making copies of proposals and counter proposals in connection with collective negotiations.

The Association shall be granted reasonable use of a computer, Internet services, fax equipment, and a photocopy machine designated by the district for the purpose of making copies or notices of Association meetings or other local Association purposes. The Association shall, at the district's discretion, pay the actual cost of the copies or replace the copy materials used. The maximum number of copies which may be produced per year under the Section shall not exceed three hundred (300). This usage should not interfere with any student's usage of computers or internal services.

#### **4.4 ASSOCIATION NOTICES**

The Association shall have a right to post notices on one bulletin board in each attendance center as designated by the building principal.

The Association shall have a right to use employee mailboxes for communication as approved by the administration.

4.5 **PERSONNEL FILE**

Each employee covered by this Agreement shall have the right to review his or her own personnel file at any reasonable time with the exception of pre-employment recommendations.

4.6 **RIGHT TO REPRESENTATION**

When any teacher is required to appear before the Board of Education concerning any complaint which could adversely affect his or her employment, the teacher shall be entitled to have a representative present.

4.7 **JURY SERVICE**

No employee shall suffer a loss of pay due to service on a jury. Any fees, except expenses for such service, shall be remitted to the district.

4.8 **ASSIGNMENTS, TRANSFERS, AND VACANCIES**

Teachers may from time to time make a written request to the Superintendent for consideration for a new assignment or vacancies within the district. All copies of teachers' requests for new assignments or to fill vacancies shall be deemed filed with the Board and shall be available for Board review and consideration. The Board shall retain the sole discretion to make assignments in accordance with the determination of the needs of the district.

Teachers shall be given notice of tentative assignments within thirty (30) days of the beginning of the school year. If such assignment constitutes a change from the preceding year, a teacher subject to such change of assignment shall be permitted a conference with the Superintendent to discuss the change. If the teacher remains dissatisfied after the conference, the teacher shall be permitted to resign without penalty.

4.9 **TEACHER EVALUATIONS**

A teacher evaluation committee will meet annually to review the then-current teacher evaluation plan. It will be composed of equal members of Board of Education Representatives, including Administrators, and Association Representatives. The committee has the authority to make any alterations to the plan or evaluation procedures through mutual agreement of the committee and in compliance with any relevant laws.

## **ARTICLE V**

### **LEAVES**

#### **5.1 SICK LEAVE**

Each full-time teacher shall be granted fifteen (15) days sick leave each year and the accumulation shall be unlimited. The use of sick leave shall be in accordance with Section 24-6 of the Illinois School Code.

Each teacher shall be notified of the number of accumulated sick days which they have to their credit at the beginning of the school year and after the end of each semester.

#### **5.2 PERSONAL LEAVE**

Each full-time teacher shall receive three (3) personal days for the transaction of business which cannot be transacted on non-school days. No more than four (4) teachers shall be granted personal leave from the district on any one day.

The district may waive the above restrictions in an appropriate case in its sole discretion. However, such waiver or non-waiver shall not constitute a precedent nor serve as a basis for any grievance under the provisions of this Agreement.

At the end of each school year, each full-time teacher may elect to have any unused portion of personal leave (one half day or more) credited to sick leave and/or personal leave for use in the following year(s). A teacher may accumulate a maximum of four (4) personal days.

#### **5.3 ATTENDANCE INCENTIVE**

An attendance incentive is offered quarterly, to any full-time certified teacher with perfect attendance, not to include administrative approved professional days nor three (3) bereavement days per death. The three (3) bereavement days in this sense apply only to the chain of attendance, not to be confused with existing bereavement policy language. Use of bereavement days and administrative approved professional days are not considered in determination of perfect attendance. Dock days do count against the attendance incentive.

- \$100 each quarter is awarded if a teacher does not use any sick leave or personal leave during that quarter.
- \$200 is awarded at the end of the year if a teacher does not use any sick leave or personal leave for the school year.

#### **5.4 BEREAVEMENT LEAVE**

Each teacher shall be granted three (3) days per death as bereavement leave for which no deduction shall be made from accumulated sick leave. Such days may be utilized in the event of a death in the employee's immediate family or in his/her spouse's immediate

family. For the purpose of this agreement, “immediate family” shall be defined as spouse, domestic partner, child, stepchild, grandchild, parent, stepparent, brother, brother-in-law, sister, sister-in-law, son-in-law, daughter-in-law, aunt, uncle, grandparent, niece, nephew, or legal guardian. Such days shall also be available to be used in the event of the death of a close friend not mentioned above.

Use of extra days will be drawn from remaining personal days or accumulated sick leave days subject to approval by the teacher’s building administrator.

#### 5.5 **ASSOCIATION LEAVE**

The Association President or his/her designee shall be provided three (3) days per year release time to attend the Association business. The Association will reimburse the district for the cost of a substitute teacher.

## **ARTICLE VI**

### **EMPLOYEE COMPENSATION**

#### **6.1 SALARY SCHEDULE ADVANCEMENT**

Horizontal advancement is dependent upon graduate level courses taken in each individual's teaching field and approved by the Superintendent or other courses as approved by the Superintendent. Vertical advancement for service after July 1, 1986, shall not be conditioned upon completion of further course work.

The salaries of each currently employed teacher for the 2024-2025 and 2025-2026 school year, respectively, are provided on the Salary Table provided with and incorporated as a part of this Agreement. The amounts provided incorporate and already include advanced education adjustments and those TRS contributions "picked up" by the Board. No other adjustments are to be made to the salaries except for horizontal advancement based on education after the current 2024-2025 school year.

Where a teacher achieves horizontal educational advancement (e.g., BS+8 to BS+16, etc.) a flat Five Hundred Dollar (\$500.00) increase will be made to the designated salary of the teacher. No other adjustments will apply.

Placement of newly employed teachers or those who are not on the Salary Schedule, will be at the discretion of the Superintendent considering factors considered relevant by the Superintendent consistent with law, such as education and experience. Adjustments thereafter will apply as if the newly placed teacher was originally on the Salary Schedule.

#### **6.2 HEALTH INSURANCE RE-OPENER**

Should National Health Insurance guidelines and/or standards significantly impact the coverage, cost, or program components of our present insurance program for either the Board or the Teachers, the contract will be reopened to address the Health Insurance issue. This would apply anytime during the inclusive dates of this contract.

#### **6.3 TEACHERS' PAY DATES**

Teachers shall be paid bimonthly (7<sup>th</sup> and 21<sup>st</sup> unless the dates fall on weekend, holiday or nonwork day which will be paid prior). Salary shall be paid in twenty-four (24) equal installments.

Payment for extracurricular assignments will be paid in one (1) of two (2) ways as follow:

- A. Lump sum payment on the next pay period following completion of the season or event; or
- B. Lump sum payment in June

Indication of which method for salary and extracurricular assignments will be made at the beginning of the school year on a form supplied by the unit office. Also, if the payment method of A or B (above) is selected, the payee is requested to file a reminder for payment. There will be a joint responsibility to be sure increments are paid in a timely method.

Sick day adjusted tally will appear on the second (2<sup>nd</sup>) check of each month. It is recommended that salary deductions, additions or changes be made prior to the 1<sup>st</sup> check of the new school year (September), or immediately following the tax filing deadline (April 15th).

#### 6.4 **SICK LEAVE BANK**

The Board of Education, in conjunction with the Southeastern Education Association, shall establish a Sick Leave Bank according to the following guidelines:

- A. The intent of this plan is to provide extended sick leave to those persons covered by this agreement who incur a period of prolonged illness, injury, or hospitalization. This plan is for employees and immediate (spouse and children) family members.
- B. The certified personnel or designated representative of the teacher should contact the Southeastern District Office within three (3) days prior to his/her need to draw upon the bank.
- C. All certified personnel from the Southeastern School District Sick Leave Bank.
- D. The Southeastern District Office makes decisions in all matters that concern the policies of the Sick Leave Bank.
- E. A member must use his/her sick days up first before drawing an amount from the Sick Leave Bank. Then days may be drawn from the Sick Leave Bank after a member has presented a doctor's written verification of his illness and his request has been approved by the Southeastern District Office. In no case shall the Sick Leave Bank provide more than 180 days per individual illness. If a prolonged illness or hospitalization for any person continues from one school year to another, that person will be entitled to no more and no less than the total number

of days accrued from the accumulated sick leave and the Sick Leave Bank as calculated at the beginning of the illness.

- F. The member receiving the days from the Sick Leave Bank shall not be required to pay back the number of days borrowed from the bank.
- G. The member may not withdraw any donated sick days from the bank except through the above procedure.

#### 6.5 **AFTER HOURS STAFFINGS**

If an employee is required to attend a staffing on Saturdays, Sundays, or holidays, he/she shall be reimbursed at the hourly rate of \$20.00 for every hour or portion thereof that they must work. In addition, if an employee must drive to the required staffing, they will be reimbursed the current district rate per mile driven (to and from).

#### 6.6 **ADDITIONAL COMPENSATION**

- A. In addition to stated compensation on the appropriate salary schedule, the Board of Education shall pay:  
TRS set rate.  
All other dollars paid to TRS will be sheltered and forwarded to TRS on behalf of the teachers.
- B. The Board of Education shall pay a total of:  
\$980.00 of health insurance per month for 2024-2025 and for 2025-2026.
- C. **Flexible Spending**  
The Board agrees to pay the initial start-up costs, the annual administrative fee, and monthly member participating fees to a \$12 per month maximum. Any amount in addition to the \$12 maximum monthly participation fee will be deducted from the employee's pay. Participation in this Flexible Spending Plan is at the employee's option.
- D. **Tuition Reimbursement**  
Teachers are responsible for maintaining a continuously high level of professional service and are responsible for discharging their assignments with professional proficiency.

Teachers who have two full years of certified consecutive contractual service with the District are eligible to request tuition reimbursement not to exceed \$900.00 per calendar year, for courses taken at an accredited educational institution for which a grade of "A" or "B" is received, or in the case of a pass/fail only course, a passing grade is received.

In order to receive the tuition reimbursement, said teacher must present the receipt for tuition paid and the grade transcript verifying course completion and grade received for said course within 90 days to the District Superintendent.

#### 6.7 **TAX SHELTERED ANNUITIES**

The District shall provide an opportunity for employees to enroll in a tax-sheltered annuity program administered by the School District. A committee consisting of an equal number of administrators and Association representatives will oversee the selection of which financial vendors will be permitted to participate in the School District's tax-sheltered annuity program. Employees who wish to join or alter their participation in the tax-sheltered annuity program will be permitted to do so by notifying the District's Business Office prior to the 20<sup>th</sup> day of the calendar month so that their enrollment or alteration will become effective beginning with the first payroll period in the following month. Participation in such a program is voluntary and District has no financial obligations related to an employee's participation in the program. Employees will only be able to enroll with financial investment vendors approved by the School District, as selected by the committee established by this provision.

#### 6.8 **RETIREMENT INCENTIVES**

##### **Eligibility**

To be eligible for any of the following Plans, an employee must meet the following requirements as of the anticipated last day of service in the District: Must have served satisfactorily in the district continuously for a minimum of twenty (20) full-time years at Southeastern immediately preceding his/her retirement and one of the following:

1. Must be at least sixty (60) years of age by the last day of service in the District; or
2. Must be at least fifty-five (55) years of age with thirty-five (35) years of creditable service as defined by the Illinois Teacher Retirement System by the last day of service in the District.

The District may require proof of eligibility.

The irrevocable letter of retirement submitted pursuant to this provision may be submitted during any year in which this agreement is in effect although the effective date of retirement will be after the termination of this Agreement.

##### **Definitions**

For purposes of this Article, TRS creditable compensation (earnings) shall be defined by TRS rules.

### **One Year Plan**

If an eligible employee who works for the district for ten years gives the Board an irrevocable letter of retirement submitted under this provision prior to March 1 stating that he/she shall retire at the end of the next school year, the employee will be removed from the salary schedule and for the final year of employment the employee's TRS creditable earnings shall be increased by six percent (6%) over the employee's TRS creditable earnings for the year of employment in which such notice of retirement is given.

### **Two Year Plan**

If an eligible employee who has worked for the district for ten years gives the Board an irrevocable letter of retirement submitted under this provision prior to March 1 effective at the end of the next two (2) ensuing school years, the employee will be removed from the salary schedule and for each of the final two (2) years of employment the employee's TRS creditable earnings shall be increased in the first of such years by six percent (6%) over the employee's TRS creditable earnings for the year of employment in which such notice is given and shall be further increased in the second of such years by six percent (6%) over the employee's TRS creditable earnings for the first of such years.

### **Three Year Plan**

If an eligible employee who has worked for the district for ten years gives the Board an irrevocable letter of retirement submitted under this provision prior to March 1 effective at the end of the three (3) ensuing school years, the employee will be removed from the salary schedule and for the final three (3) years of employment the employee's TRS creditable earnings shall be increased in the first such years by six percent (6%) over the employee's TRS creditable earnings for the year of employment in which such notice is given; further increased in the second of such years by six percent (6%) over the employee's TRS creditable earnings for the first of such years; and, further increased in the third of such years by six percent (6%) over the employee's TRS creditable earnings for the second of such years over the employee's TRS creditable earnings.

### **Miscellaneous**

Once an irrevocable letter of retirement is submitted, the employee will not be assigned any additional TRS reportable duties not currently being performed without the consent of the employee.

If, after submitting an irrevocable letter of retirement, the employee resigns from or is removed from duties for which the employee was compensated the previous year, the employee's TRS creditable earnings will be adjusted accordingly. The excess amount of compensation will be refunded by the employee to the Board of Education by the June 30<sup>th</sup> of the year in which the employee resigns or is removed.

In the event an employee has submitted his/her timely irrevocable letter of retirement but fails to meet the specific eligibility requirements set forth above because of the employee's personal illness or life-changing circumstances personally affecting the employee, the Board, in its sole discretion, may allow the employee to rescind his/her letter of retirement, provided the employee returns to the Board any TRS creditable earnings paid to the employee in excess of the amount the employee would otherwise have received under the salary schedule for such year(s) in which the creditable earnings were paid. The Board of Education is under no obligation to allow an employee to rescind a letter of retirement and exercise of the Board's decision is not subject to the grievance procedures. It is specially understood that, for example, the availability of other retirement options, great benefits that might accrue, or circumstances that do not affect the employee meeting the requirements is not a basis to request that the Board of Education allow an employee to rescind a letter.

If legislation is enacted and/or administrative rules are adopted during the life of this agreement that result in a greater cost to the District than the costs generated by this agreement, the parties agree to re-open this provision of the contract for purposes of bargaining impact of the change. Such change, however, will not affect any employee who has already submitted an irrevocable letter of retirement.

#### 6.9 **TEACHING EXPERIENCE**

Additional years of teaching experience may be granted upon the District's needs and not to exceed the employee's actual teaching experience by more than seven (7) years, if the employee is hired in one of the following positions: School Psychologist, School Counselor, and Speech Pathologist.

## **ARTICLE VII**

### **TECHNICAL CLAUSES**

#### **7.1 DURATION**

This Agreement shall become effective on the 1<sup>st</sup> day of August, 2024, and continue until the 30<sup>th</sup> day of June, 2026.

#### **7.2 INDIVIDUAL CONTRACTS**

The terms and conditions of this Agreement shall be the terms and conditions of individual contracts of members of the bargaining unit.

#### **7.3 COMPLETE UNDERSTANDING**

This Agreement constitutes the full and complete understanding between the parties. All rights, powers, and authority of the Board and/or its administrative staff not specifically limited by the language of this Agreement are retained by the Board. The Board, however, shall take no action which shall violate any of the specific provisions of this Agreement.

#### **7.4 REOPENER**

If agreed to by both parties (mutually), the Board of Education and the Association will meet annually, not later than June 30<sup>th</sup>, during the term of the contract to discuss any contract language relating to terms of conditions of employment.

#### **7.5 WAIVER OF ADDITIONAL BARGAINING**

The parties acknowledge that during the course of the negotiations which resulted in this Agreement each had the right to make demands, proposals, counter proposals with respect to any matter not specifically excluded by law and that this Agreement has been arrived at following the full exercise of this right. It is therefore understood that neither party shall be obliged to bargain collectively with respect to any subject or matter referred to or covered by the Agreement or with regard to any subject or matter not referred to or covered by this Agreement.

#### **7.6 SUPERSEDED PRIOR AGREEMENTS**

This Agreement supersedes and nullifies all previous written Agreements between the Board and the Association.

7.7 **NO STRIKES**

The Association agrees that it will not, during the period of this Agreement or any extension thereof, engage in or assist in a strike.

In the event of any violation or violations of this article by the Association, its members, representatives or, any employee covered by this contract, the Association shall upon notice from the Board, immediately direct such employees both orally and in writing to resume normal operation immediately and take every other reasonable effort to end any violations.

7.8 **VALIDITY**

Should any article, section, or clause of this Agreement be declared illegal by a court of competent jurisdiction, then that part shall be deleted to the extent that it violates the law and the remaining articles, sections, and clauses shall remain in effect.

7.9 **TERM OF CONTRACT**

This Agreement covers the school years of 2024-2026. The Contract is to expire on June 30, 2026.

Dated this 24<sup>th</sup> day of July, 2024.

 7/24/24  
Signature Date

Board of Education  
Southeastern CUSD # 337